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Intuitions, intentions, and the moral wrongness of hostile design: A reply to Robert Rosenberger

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Abstract

Certain designs of urban environments are said to exclude the unhoused from urban spaces, or at least to attempt to deter them from using these spaces. Perhaps the most influential critic of these types of design – which have been termed *hostile design* – is Robert Rosenberger. This paper argues that some of the central views presented by Rosenberger to support his ethical critique of hostile design in his recent work, while being inspiring and important, are also problematic. Specifically, we argue that the ethical methodology he employs, and which is based on our moral intuitions, faces several problems. Moreover, we suggest that it is unclear what role 'intentions' play in his work, and that the most likely interpretations all have considerable drawbacks. Lastly, we contend that the scope of his moral critique of hostile design is opaque because it is not clear what moral weight he ascribes to the putative wrong of employing hostile design, and that this makes the practical applicability of his views limited. The paper concludes that while it is important that hostile design is subjected to rigorous ethical scrutiny, more work is needed to build a robust ethical case against it.

Keywords Hostile Design, Robert Rosenberger, Moral Intuitions, Intentions, Moral Evaluations.

1. Introduction

In recent years, there has been a growing academic and public focus on certain designs of urban environments, which are said to be excluding the unhoused from urban spaces, or at least to attempt to deter them from using these spaces (e.g. Jensen 2020; de Fine Licht 2017; Petty 2016; Nitrato Izzo 2022; Holmen 2024; Petersen 2025, chap. 3 and 4).[1] These designs may include, for instance, benches that are equipped with armrests or other seat dividers, or which are tilted on an angle, both of which make them difficult to sleep on. They also include installing spikes on the ground or on other surfaces to deter begging, prolonged sitting, or sleeping. Steam vents that otherwise provide the unhoused with a heated area on which

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to spend cold nights or days, are systematically removed or redesigned in such a way that they can no longer be used for this purpose. Trashcans around the world are increasingly fitted with an "antipick" lid that makes them much harder to access for people for whom the trashcans are sources of food or income in the form of bottles or other recyclables (Rosenberger, 2017). These are just some examples of urban design measures which are referred to as *hostile design*.

Arguably one of the most influential critics of hostile design is Robert Rosenberger (2017; 2020; 2023). Rosenberger is, to the best of our knowledge, the only scholar to provide a book-length moral philosophical critique of hostile design, and he has subsequently published several papers further discussing the issue. There is no doubt that the unhoused are often stigmatized and marginalized in many societies, and that much more should be done to address the problem of homelessness or at least to reduce the harm and suffering many unhoused people experience. However, while we are generally sympathetic towards Rosenberger's (2017) project of attempting to "identify, philosophically articulate, and critique" (p. 28) hostile design, we believe that several of the arguments he presents against such measures in his book *Callous Objects – Designing against the Homeless* (from here simply *Callous Objects*) and elsewhere are unconvincing as a result of his ethical methodological approach, his use of unclear distinctions, and him given ambiguous answers regarding the scope of the wrongness of hostile design. Given the significant influence that the views Rosenberger defends in his book and in his articles have had (and continue to have) on debates regarding the ethics of using hostile design against the unhoused, we believe it is important to highlight where his ethical arguments fall short and where more work is thus needed. Specifically, in this paper and as already hinted at, we will argue that there are at least three issues confronting Rosenberger's account, that to the best of our knowledge, have hitherto not been identified by other scholars.

The first issue is a methodological one, and pertains to Rosenberger's reliance on moral intuitions in his moral evaluation of hostile design, a reliance that we believe is problematic. This will be the subject of section two. In section three we provide some reasons for being skeptical of one view that Rosenberger seems to adhere to, namely that for a design to be an instance of hostile design or to be morally wrong to employ, it must be implemented with the *intention* to harm or wrong the unhoused. Section four turns to the issue of when it is wrong to employ hostile design. Is it always wrong, or is it wrong only if other countervailing moral considerations are absent? We shall suggest that Rosenberger gives conflicting answers to this question, and this makes the practical determination of whether a piece of hostile design is morally permissible to employ (or not) more difficult than it could be. Section five summarizes and concludes.

Before embarking on the discussion, it is important to highlight that while we are skeptical of some of Rosenberger's moral arguments and will argue that some of them require further elaboration or ought to be rejected, it does not follow from this that we are therefore in favor of using hostile design against the unhoused. The point of the present paper is *not* to give a positive defense of this practice, but to highlight some shortcomings in Rosenberger's critique of it in the hope that this will help improve the quality of the scholarly debate on the ethics of hostile design.

2. Challenges for an intuition-based ethical critique of hostile design

In Rosenberger's moral evaluation and critique of hostile design, he relies heavily on our moral intuitions. As an example of this methodological approach, he writes in the introduction to *Callous Objects*:

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1. Other groups are also sometimes challenged by this type of design, for example skaters, beggars or loitering youth, but following Rosenberger we here focus on a particular group of people, namely the homeless, or as we prefer to say, the unhoused. However, most of the conclusions we offer as regards to the hostile design targeting this group seems to apply to these other groups as well.

> To make the moral argument, this pamphlet will not delve into the intricacies of ethical theory, but will instead unearth, highlight, and test our moral intuitions. By raising awareness of the often unnoticed designs of our shared public space and by reflecting on the often hidden political agenda behind them, I hope to demonstrate how immoral and unjust the designs and agendas are (Rosenberger, 2017: xii).

A small comment before we move on with a reconstruction and critical discussion of the argument entailed in this quote. It is not obvious whom exactly Rosenberger refers to when he says 'our' moral intuitions. One way to interpret him is as referring to the intuitions of *everyone*, including people who are not aware of these designs in the first place and know nothing about the intentions behind these designs or their effects on vulnerable people. However, on closer inspection, this is certainly not what Rosenberger has in mind. Instead, he seems to believe that if we know about these objects and the intention behind them, we would without hesitation intuit that they are morally wrong. The point of the book is thus to aid people in reaching *well-informed* moral intuitions about hostile design. Taking this observation into account, we believe that a fair reconstruction of the moral argument that Rosenberger refers to in the abovementioned quote, can be reconstructed as follows:

> P1. If our well-informed moral intuitions tell us that practice X is morally wrong, then X is morally wrong.
> P2. Our well-informed moral intuitions tell us that the use of hostile design is morally wrong.
> Conclusion: The use of hostile design is morally wrong.

As this argument is logically valid, we will focus on a critical discussion of one of its premises. But first, it is only fair to emphasize that the point of this critique is to make it clear what role Rosenberger believes our moral intuitions should play in the moral evaluation of hostile design. We therefore do not here pay attention to the detailed and interesting conceptual and empirical analyses that Rosenberg's work entails concerning the intentions behind hostile design and the effect of such design on unhoused people (but see section three). Furthermore, whether this reconstruction of Rosenberger's argument entails a fair description of Rosenberger's conclusions concerning the use of hostile design is a matter we will discuss in more detail in section four. Since P1 may be said to be contentious by those that believe that moral intuitions should be ignored when we make our moral judgements (or, at least, should be accorded much less than decisive weight), we shall here focus our discussion on P2.

The challenge for this premise is that we do not believe that Rosenberger has provided us (and thereby supported our intuitions) with enough information concerning the intentions (?) and effects of hostile design to make us confident in claiming a valid inference from our moral intuitions concerning hostile design to the conclusion that hostile design is morally wrong. Even Rosenberger (2020) accepts that we lack empirical studies on whether and how different kinds of designs actually harm the unhoused and/or whether and how they may *benefit* other vulnerable people. For example, placing a new bench with an armrest at a transportation center may benefit the unhoused compared to a situation where there were no bench at all. Alternatively, disabled people, children, and the elderly may benefit from some implementation of hostile design. For example, they may feel safer using public transport, as they may be afraid to take the bus if a person is begging or sleeping at the bench by a bus stop, thus increasing their use of public transport (see also de Fine Licht 2020). Or, it may be more comfortable for them to sit with an armrest. Empirical studies showing such benefits may very well influence people's moral intuitions on hostile design. But in the absence of such studies, it seems premature to argue that we are well-informed on all relevant dimensions of the issue. We are *not* well-informed, and Rosenberger accepts this. However, since he does accept this, it follows that we cannot rely on our moral intuitions concerning hostile design. It

is therefore dubious even by his own criteria to conclude that hostile design is morally wrong. Moreover, Rosenberger does not refer to any surveys about people's moral attitudes to hostile design. Instead, as mentioned above he writes in a 2020 article that we are in need of such empirical studies. However, this observation makes it even more curious that he (and others) can conclude what our moral intuitions are without these empirical studies.

A final methodological challenge to Rosenberger's ethical analysis is that if moral intuitions should take center place, then it is unclear what role ethical theory should play in the moral evaluation of hostile design. This raises several methodological questions in particular because in criticizing the laws behind much hostile design (e.g. laws against begging and sleeping rough in certain places), Rosenberger argues convincingly that such laws and the ensuing employment of hostile design violates moral principles such as the 'right to freedom of speech' and the 'right to rest.'. Now, it seems most natural to conceive of such rights as belonging to or being entailed in a theory of rights. However, this implicit reliance on ethical theory may create problems for Rosenberger because it raises the question of what our moral attitude concerning hostile design should be if our moral intuitions against hostile design are in tension with some moral rights theories (e.g. a moral theory about property rights) that can be used to speak in favor of implementing hostile design within certain private areas. While it is understandable that Rosenberger does not dive into the intricacies of ethical theory and offer us a full account of the relation between moral intuitions and ethical theory, we think it useful for debates on the ethics of hostile design to highlight this potential tension so that it does not become a weak spot in our future theorizing.

3. Do intentions matter for hostile design?

In this section we shall turn to another, more substantial, issue we have with Rosenberger's arguments against hostile design. This issue concerns what role the intentions of actors employing these measures play in his moral evaluation. Consider the following passages from *Callous Objects* and some of Rosenberger's other work:

> Antipick garbage cans join with antihomeless spikes and antisleep benches as examples of restrictionary design *aimed* at the unhoused population (2017: 26, our italics).

> [H]ostile design [...] refers to objects within public spaces that have the effect of *targeting* vulnerable groups, and which have garnered criticism (or should be criticized) for this hostility (2020: 884, our italics).

> I have attempted to identity and philosophically articulate a *pervasive strategy* in which antihomeless design and policy effectively push unhoused people out of public space [...] And I have attempted to reveal this strategy to be immoral and unjust (2017: 78, our italics).

From these, and similar statements (e.g. Rosenberger 2017: 36, 44), one is left with the impression that Rosenberger believes that the implementation of hostile design is an intentional act by the relevant actors. This is at least true if we assume that one cannot unintentionally *aim at* or *target* something or someone, nor can one unintentionally develop and employ a *pervasive strategy*. However, from these quotes there also seems to us to be two ways to interpret the role that Rosenberger delegates to intentions, both of which are potential sources of problems for his account – or so we will suggest. Specifically, we will argue that the first interpretation pertaining to the role of intentions in defining hostile design fails to capture instances of design that Rosenberger himself seems to consider exampels of hostile design.

Further, we suggest that a possible way to remedy this issue also faces considerable drawbacks. The other interpretation places intentions as central for determining the moral status of hostile design and this, we shall suggest, is contentious for at least two reasons.

3.1 Intentions and the definition of hostile design

The first interpretation of the role that Rosenberger delegates to intentions relates to the first passage quoted above: it is that the intention to exclude the unhoused is central to the *definition* of at least some instances of hostile design.[2] That is, that while there are other conditions that must be met for a design measure to constitute hostile design (see e.g. de Fine Licht, 2023; 2020), one important condition is that the measure aims or intends to exclude the unhoused. Call this the *conceptual interpretation of the relevance of intentions* (or the conceptual interpretation for short).

Now, the status of the condition highlighted by the conceptual interpretation can be conceived of in two ways. First, it can be seen as a *necessary condition*, that is, as a condition that *must* be observed for a design to be considered hostile. Second, the relevant intention can be considered a *disjunctive condition*, i.e. a condition that *can* be observed in hostile design but that need not be there for a design to be defined as hostile. That is, that other conditions, if met, can do the central conceptual work otherwise done by intentions to exclude. In *Callous Objects*, Rosenberger seems to believe that the intention to exclude is a necessary condition, while in later work he seems to conceive of it as a disjunctive condition. We will now suggest that both the necessary and the disjunctive version of the conceptual interpretation face serious problems.

Consider first the variation of the conceptual interpretation in which the intention to exclude is necessary for a design to be hostile. Two things should be mentioned at the outset. First, seeing intent as necessary to the definition of hostile design is not an unusual approach to defining these measures. Ole B. Jensen has, for example, defined hostile design as "the deliberate shaping and design of urban spaces and artefacts with the *intention* of excluding particular activities and social groups" (Jensen, 2020: 227, our italics).[3] Second, as mentioned previously, it seems clear from his writing that Rosenberger believes that certain *types* of design - e.g. antipick garbage cans, antihomeless spikes, antisleep benches, etc. - should be captured by a definition of hostile design.

With this latter point in mind, however, consider the following three implications of accepting a version of the conceptual interpretation where a definition of hostile necessarily involves intention to exclude the unhoused.

Suppose first that there is a park in which many unhoused people go to pick through trashcans. Suppose also that the park has a problem with birds scattering the garbage from the trashcans all over the park. Now compare the following two cases.

> Case A
> The relevant authorities want to attempt to reduce the number of unhoused people that come to pick through trashcans in the park. To do so, they install antipick trashcans. The result is that the unhoused can no longer access the content of the trashcans, and so they stop coming to the park. Also, implementation of the design means that birds can no longer scatter garbage from the trashcans.

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2. As will be clear in the ensuing subsection, Rosenberger also seems to attach normative significance to the fact that a piece of design is intentionally excluding the unhoused. Thus, as Rosenberger conceives of it, hostile design is a moralized concept rather than a purely descriptive term.

3. See also Jensen (2018).

> Case B
> The relevant authorities want to avoid park birds scattering the garbage from trashcans all over the park. To do so, they install antipick trashcans. The result is that birds can no longer scatter garbage from the trashcans. Also, implementation of the design means that the unhoused can no longer access the content of the trashcans, and so they stop coming to the park.

If the intention behind the implementation of a design is relevant for assessing its hostility, then it follows that while the design in Case A is indeed hostile, the design in Case B is not. Thus, insofar as Rosenberger (and other scholars) want to say that design as the one described in Case B is an instance of hostile design – which, as noted above, Rosenberger does indeed seem to want – then this variation of the conceptual interpretation will not suffice.

A further puzzling implication of the conceptual interpretation is that there might be cases in which someone intends their design of the environment to be inclusive of the unhoused, but where it is *unintentionally* hostile to that very group. Suppose, for example, that a park manager decides that loud classical music should be played everywhere in the park because he believes that the unhoused would enjoy listening to such music. Suppose further that the presence of the classical music in fact makes the park unsuitable for resting or sleeping. Again, insofar as Rosenberger wants to say that the the park manager's design of the park's acoustic environment should be seen as an instance of hostile design – which it seems to us that he plausible should since the unhoused can no longer use the park to rest or sleep – then the conceptual interpretation under consideration will not aid him in doings so. It will not do so, because on this interpretation we cannot label a piece of design as hostile if it was implemented with the intention to include rather than exclude the unhoused.

Consider now a final case that illustrates what we perceive to be yet another problem for the conceptual interpretation, which would have us say that a piece of design is hostile where it is hardly clear that this is the case. Suppose, similarly to Case A above, that a park manager orders the installation of trashcans with antipick lids in a park with the explicit intention of ensuring that the unhoused cannot pick through the trash. Suppose, however, that unbeknownst to the park manager, the antipick trashcans have a flaw in their design so that instead of making it harder for the unhoused to reach inside, the lid merely keeps the garbage protected from the rain, thus allowing the unhoused to find food unspoiled by the weather conditions. If we accept the necessary condition-version of the conceptual interpretation, it seems that we have to say that the flawed antipick trashcans are a piece of hostile design because they were installed with the explicit intention to exclude the unhoused from the park. However, while it is open for Rosenberger to bite the bullet and maintain that this is in fact the case, this strikes us as an unacceptable implication since these trashcans make the environment more inclusive of the unhoused rather than less. And this seems like something that a definition of hostile design should be sensitive to.

Now, Rosenberger (and others) might at this juncture respond that the cases we have offered only show that there are *some* instances where we should not define hostile design in terms of the designers' intentions. However, they might continue, this does not suffice to establish that intentions are never relevant for a definition of it. This may of course be true. It could be the case that hostile designs are so different that the best we can do is to offer a disjunctive definition of it. That is, that a design should be considered hostile only if the intention behind it is to exclude the unhoused *or* if it results in the exclusion of the same group. This seems to be the view that Rosenberger (2023) adheres to in his more recent work. As he, following de Fine Licht (2020), puts it: "It is important [...] to keep an eye on all of the various actors potentially responsible for hostile designs and also to maintain our focus on the hostile effects of our designs rather than only the intentions of particular people" (2023: 57). By this view, then, intent to exclude the unhoused is merely one out of two possible conditions for naming something X hostile design, i.e. it

is a *disjunctive condition* of hostile design. However, adhering to this version of the conceptual interpretation is not without its own challenges. Specifically, insofar as Rosenberger adheres to a disjunctive definition of hostile design in which a design can be hostile due to its impact *or* the intentions behind it, we then need guidance about what to do when the two possible conditions are in conflict. When this is the case – that is, when the two conditions give conflicting answers as to whether a piece of design is hostile – which one should we adhere to and why? An answer to this question is not just of theoretical interest because as illustrated with the cases above, there are instances where the *impact* of a piece of design is exclusionary, but where the *intention* behind installing it is inclusive, and vice versa. Absent an account of how we should navigate such cases, Rosenberger will not be able to reach his stated aim of aiding us in identifying when a piece of design is hostile in a range of cases.

3.2 Intentions and the moral status of hostile design

The second interpretation of the relevance of intentions for Rosenberger's account takes statements like the one in the second and third quote displayed at the top of this section as its point of departure, and is more directly related to the moral status of hostile design. Although he is not clear on this, in the quotes (and, indeed, throughout the book and in recent articles) one can interpret Rosenberger as holding that the moral wrongness of employing hostile design is, at least partly, a function of the intentions of the agent(s) that employs the said design(s). That is, that implementation of a design is wrong at least in part if and when the actor intends to exclude the unhoused by implementing it. Or, alternatively, that the implementation is at any rate more wrong if there is such an intention than if there is not. Call this the *moral interpretation of the relevance of intentions* (or the *moral interpretation* for short). The moral interpretation implies that there is a moral asymmetry between the first set of cases presented above. That is, that the implementation of hostile design in Case B is *less* morally wrong than in Case A, because there is no intention by the relevant authorities in the former to exclude the unhoused (or so we stipulated). The existence of a moral asymmetry between harms that are intended versus harms that are not so intended (perhaps the harm was "merely" foreseen) is, of course, a well-known point of debate among moral philosophers which is often related to the more general debate in ethical theory about whether we should accept the Principle of Double Effect. Obviously, we cannot here settle this debate, nor will we try to even tentatively add to it. However, there are at least two challenges that have been raised against this principle that seem highly relevant for the moral interpretation.

The first challenge is epistemic in nature and basically pertains to the fact that it is difficult in practice to know what the intentions of actors are (Thomson, 1999: 510f). It is of course true that authorities are sometimes quite explicit in their reasons for implementing a piece of hostile design (and sometimes these reasons indeed are to exclude the unhoused), and it is surely also true that we can sometimes infer from previous conduct or statements made what their intentions are likely to be even if they are not forthcoming about their present intentions. However, this is arguably not so in many cases. If true, this is a problem for Rosenberger's account since it explicitly aims to be "of assistance in evaluating concrete technologies and technological trends" (Rosenberger, 2017: 77). However, if it is usually the case that we lack epistemic access to the intentions of the relevant actors, and the intentions of the relevant actors are relevant to the moral assessment of the permissibility of implementing a piece of hostile design, it would seem that Rosenberger's account can only provide practical guidance in a limited set of cases (i.e. the cases where the intentions of the actors are known to us or, at least, the cases where we can safely infer from their previous conduct/statements/etc. what their intentions must be in a given case).

The second challenge is that even if we knew the intentions of the relevant actors, it is not clear that these intentions are relevant for the permissibility of the performed act (Rachels,1986: Chapter 6). Or as Judith Jarvis Thompson (1999) has put it: "The question whether it is morally permissible for a person to

do a thing just is not the same as the question whether the person who does it is thereby shown to be a bad person" (p. 517). What acting from malicious intentions shows is not that the act itself is therefore morally impermissible, but that there is "something morally bad about [the agent]" (p. 516). If this critique of the relevance of intentions for moral permissibility is correct – as seems to us very plausible – it implies that the intentions of those installing a piece of hostile design are irrelevant for the question of whether it is morally permissible to implement the design. It might, however, be relevant for a moral evaluation of the actors' moral character, i.e. determining whether they are good or bad people. The upshot of this is that Rosenberger's moral evaluation of hostile design may be confounding two issues that ought to be kept apart.

Now, Rosenberger might here respond that intentions can be relevant for moral permissibility in a more indirect way, in that someone with malicious motives is plausibly more likely to act in morally impermissible ways. In our view, such an indirect instrumental view of the relation between moral permissibility and intentions is much more convincing than a view that implies that we can make direct inferences from the presence of bad motives to the impermissibility of an action (which is how we interpreted Rosenberger in the section above). However, although the instrumental view seems to us more plausible, it is of little help to Rosenberger, because it too faces the epistemic challenge offered above, that of being unable, in most cases, to determine the intentions of the relevant actors. Let us now turn to the last challenge for Rosenberger that we would like to address.

4. When is it morally wrong to use hostile design against the unhoused?

According to Rosenberger, one of the main takeaways from his research in *Callous Objects* and in other articles, is that the systematic use of hostile design and public policy to exclude the unhoused from public space is "immoral" (Rosenberger, 2017: xii). However, in our view at least, it is not clear what Rosenberger more precisely has in mind when offering this judgement. Specifically, are we to understand the use of hostile design to exclude the unhoused as (1) always or absolutely wrong or (2) to be pro tanto wrong, i.e. wrong absent other, more heavy weighing countervailing moral considerations? Furthermore, it is not clear whether his moral critique of hostile design should be understood as concerning *types* of design, e.g. benches with armrests, *tokens* of designs e.g. specific benches with armrests in a specific train station, or whether his critique is levelled at *any* instance of hostile design regardless of type or token.

We shall here focus on the problems associated with Rosenberger's ambiguous view of what moral weight we should assign to the use of hostile design be it *en bloc,* or concerning certain types or tokens. Rosenberger's view on this matter seems to us ambiguous because he sometimes gives the impression that he holds that employing hostile design is always wrong – as in the citation just offered – but at other points he offers statements that can be interpreted as if he adheres to the view that doing so is merely pro tanto wrong. For example, at one point in *Callous Objects* he writes that when we are to decide whether to install concrete bike lane barriers, "*as always*, there are trade-offs to consider, such as the fact that a concrete bike lane barrier would prevent all cars, including emergency vehicles, from using the lane as a parking spot" (p. 75, our italics). And although it is not clear whether he accepts this view himself, he at least acknowledges in a recent paper that: "We can imagine someone who is critical of anti-homeless design as a trend, but who simultaneously defends a particular instance of an anti-sleep bench or antipick rubbish bin for the way it has an effect of assisting some vulnerable population" (Rosenberger 2023: 889).

Why does it matter whether we should understand the moral restriction that Rosenberger advocates for as subject to trade-offs or not?[4] It matters because these two interpretations of when hostile design is morally wrong to employ may give conflicting answers in certain cases. We shall exemplify this in relation to a specific token of hostile design, but the issue also arises on both the type-level and the general-level of discussion. So, suppose that a steam vent happens to be placed right in front of the entrance to a building

so that if an unhoused person lays or sits on it to warm themselves up, then one can only get inside the building by squeezing past or, perhaps, steeping over that person. Suppose further that because of this, people who have trouble walking – such as some elderly or disabled people – cannot enter the building or can do so only by exposing themselves to a considerable risk of falling and being injured. Now, the question is whether it would be morally wrong to design away the steam vent or, at least, design it in such a way that it becomes much harder for the unhoused person to use it? Interpreting Rosenberger in the first way offered above – that is, as suggesting that this token of hostile design is wrong to employ in an absolute sense – unsurprisingly yields the result that it is indeed morally wrong to remove the vent. However, if on the other hand the wrongness of employing hostile design is subject to trade-off considerations, i.e. if doing so is "merely" pro tanto wrong, then it is arguable that it would be permissible to remove or otherwise redesign the steam vent so that it is difficult to sit or lay on. At least this is so if, as seems to us plausible, the value of protecting the interests of the vulnerable people that cannot enter the building or cannot do so without risking harm outweighs the interest the unhoused have in using the steam vent.[5] As might be obvious, the problem with the fact that Rosenberger is not clear on which of the interpretations he adheres to is that in some practical cases, his account cannot provide action guidance for policymakers, designers, city-planners, and others. More precisely, while it can provide guidance in cases when implementing all or specific types or tokens of hostile design is clearly morally wrong on *both* interpretations, it cannot provide such answers in a considerable range of other cases where the interpretations conflict in their conclusions.[6]

Conclusion

Urban environments and the objects within them are increasingly being designed in such a way to exclude the unhoused. It is important that we have a clear idea of what the definitional features of such designs are so that we can correctly identify them, and we need a clear view of when and why it is wrong to employ them. In this paper, we have suggested that some of the answers that Robert Rosenberger, one of the most influential and inspiring philosophical critics of hostile design, provides to these questions are problematic due to the methodology on which they are based and because they rely on unclear distinctions and arguments. Thus, while we are sympathetic towards Rosenberger's project of identifying and criticizing hostile design, our paper highlights that there is need to improve the theoretical and methodological approaches to the ethics of hostile design.

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4. Interpretations of moral constraints as either absolute or moderate (that is, subject to trade-offs with other moral values) also face several other important challenges that we shall not engage with here. But see e.g. Kagan (1998).

5. Tom Roberts has written an evocative analysis of the movement of becoming toward the active joy of blessedness. "Deleuze's Spinozian ethics shows that we are necessarily joyful when we become the cause of adequate ideas: through this process of becoming active, we produce joys that exceed the subject's experiential world. In What Is Philosophy?, Deleuze [and Guattari] pushed this pursuit of adequate ideas beyond the philosophical domain to include both artistic and scientific modes of thought. The adequacy of an idea in painting, for instance, does not depend on the artist's capacity to represent his or her subjective experience. Rather, adequacy rests on the work's capacity to implicate our mode in relations that exceed any possible form of experience: not the representation of what happened, but the affect as a relation that expresses a power of action, immanent to the encounter itself" (2019 133). Joy is its own reward, although there is no gap between cause and effect. I am drifting through this immanence of painting elsewhere.

6. It is worth noting that the issue we raise is not amendable by collecting more empirical data on the impact of hostile design. This is because while such data is plausibly necessary for a moral assessment of hostile design, it is not sufficient; even if we discover that a design has both harmful and beneficial effects, we would still need to know how to weigh these values against each other. How to do so is a conceptual rather than empirical question.

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